



DECISION

Complaint No. : POS/361/HYD/2024

Name and address of the complainant : Mr. Ahmed Ali, Contactor,
R/o. House No.446, Isra Village, Near Isra
University, Hyderabad.

Name of the Agency Complained against : Chief Municipal Officer, Municipal Committee, Hala,
District Matiari.

Name & Designation of Investigating Officer : Syed Muhammad Sajjad Hyder, Regional Director,
Regional Office, Hyderabad.

Vetted by : **Muhammad Naseer Jamali, Advisor-N**

Subject : **COMPLAINT AGAISNT MUNICIPAL COMMITTEE, HALA
ALLEGING VIOLATION OF SPPRA RULES 2010 IN THE
AWARD OF CONTRACT WORKS**

Complaint

Mr. Ahmed Ali filed a complaint dated 14.06.2024 wherein he stated that he participated for execution of contract work issued by the agency vide NIT No.27/MCHALA/ENG/2024, **Providing & fixing of paving Block @ Chorigan Imam Bargah Hala up to Memon Graveyard** through TCS courier service on 21.5.2024 but his bid was not considered by the Procurement Committee. He had offered a lowest bid but the agency violated the SPPRA rules 2010 which resulted in financial loss to the agency. Aggrieved by that he solicited intervention of this Institution.

Proceedings

2. The case was admitted for investigation u/s 10 (3) of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) subject to submission of mandatory Affidavit on Form "A", other relevant documents and by condoning the delay
3. This office issued a notice vide letter dated 04.07.2024 to the Chief Municipal Officer, Municipal Committee Hala, District Matiari for report. In response, the CMO, MC, Hala District Matiari informed vide letter dated 06.08.2024 that due to absence of the complainant or his representative at the time of tender opening process, his NIT documents were not opened, nor were these dropped in the tender box. The process of NIT was initiated in accordance with procedure and guidelines mentioned under SPPRA Rules, 2010, amended in 2017 and relevant provisions are reproduced as under:

Rule 41-Sub Rule (4), SPPRA, 2010

"All bids shall be opened publicly in the presence of all the bidders, or their representatives, who may choose to be present in person, at the time and place mentioned in the invitation of bid.

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Rule 41, Sub Rules (6), SPPRA, 2010

“All bidders in attendance shall sign an attendance sheet”

Rule 41, Sub Rules (7), SPPRA, 2010.

“All bids submitted after prescribed time or those not opened due to any procedure flaw, shall not be considered and shall be returned without being opened.

4. The copy of agency's report was sent to the complainant for rejoinder vide this office letter dated 28.08.2024, who in reply vide his rejoinder dated 05.09.2024 reiterated his version and requested for return of his call deposit. Accordingly, this office issued a notice dated 7.11.2024 to the agency for necessary action.

5. The Chief Municipal Officer, Municipal Committee, Hala vide his subsequent letter dated 21.02.2025 informed that the call deposit (CDR) No.01137986, amounting to Rs.100,000/- has been returned to the complainant. He enclosed the copies of cheques and other documents as an evidence.

6. The copy of agency's report was sent to the complainant for rejoinder vide letter dated 26.06.2025, followed by reminders but he did not respond.

Decision

7. In view of the above and in exercise of powers vested in me under section 11 of Establishment of the office of the Ombudsman for the Province of Sindh Act, 1991 (amended upto date), the complaint is disposed of on account of non-prosecution.

Given under my hand and seal of the office



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz, PAS
Ombudsman Sindh

Karachi, dated 11.11.2025